

US FTC Advertising & Health Claims Practical Examples (2)

Legal-status note: The examples in this document are derived from the FTC's *Health Products Compliance Guidance*. They are illustrative examples of how the FTC applies advertising principles and are not independent statutes or regulations. The FTC expressly states that the guidance does not have the force or effect of law.

Example 11 Drug Interaction Risk

FTC Source: Health Products Compliance Guidance Example 11

Scenario:

A botanical supplement is marketed as an all-natural sleep aid.

The product itself may not present a safety risk when used alone, but its active compounds use the same metabolic pathway as common prescription medicines for anxiety and depression and may interfere with their effectiveness.

FTC principle:

A significant safety issue can exist even when the product itself appears safe when used alone.

Ayurvedic Application:

For Ayurvedic botanicals that may interact with prescription medicines, marketing should not create an unrealistically broad impression of safety.

Compliance Trigger:

Herbal-drug interaction / safety claim / botanical supplement / material disclosure.

Example 12 Traditional Digestive Tea

FTC Source: Health Products Compliance Guidance Example 44

Scenario:

An herbal tea is advertised:

Ancient remedy used for centuries to aid digestion. There is no scientific evidence that it works.

The traditional-use statement and the disclosure about the lack of scientific evidence are equally prominent.

FTC conclusion:

The advertisement can potentially communicate the limited nature of the evidence.

However, if the advertisement additionally contains a testimonial saying the tea provides **instant relief from an upset stomach**, the testimonial can overwhelm the qualification and create an implied efficacy claim.

Ayurvedic Application:

A company could potentially describe an authentic Ayurvedic traditional use, but it should not undermine the limitation through testimonials, images, or other statements suggesting proven efficacy.

Compliance Trigger:

Ayurvedic traditional use / disclaimer / testimonial / net impression.

Example 13 Traditional Use Must Match the Actual Product

FTC Source: Health Products Compliance Guidance Example 45

Scenario:

A botanical was traditionally used in raw form in China to make tea for increasing energy.

A company instead markets a **concentrated botanical extract in capsule form**.

The advertisement discloses that the energy claim is based only on traditional use and lacks scientific evidence.

FTC conclusion:

The claim may still be deceptive because the concentrated extract is not necessarily consistent with the traditional product.

Ayurvedic Application:

A company should not automatically describe a modern concentrated extract, standardized extract, capsule, or isolated ingredient as having an Ayurvedic traditional-use basis simply because the raw plant has historically been used in Ayurveda.

The FTC says the product should be consistent with the traditional use, including relevant factors such as:

ingredients/formulation;

strength or dose;

form of administration; and

indications for use.

Compliance Trigger:

Ayurvedic traditional use / extract vs raw herb / formulation / dosage.

Example 14 Serious Disease Claims Cannot Simply Be Saved by a Disclaimer

FTC Source: Health Products Compliance Guidance Example 46

Scenario:

An advertisement claims that a liquid mineral solution has historically been used as a folk remedy for **shrinking tumors**.

There is no scientific research supporting the claim.

Even if the advertisement contains a clear disclaimer stating that there is no scientific support, the FTC says the strong cancer-treatment message may still mislead consumers.

Ayurvedic Application:

An Ayurvedic company should not assume that adding:

No scientific evidence supports this claim

automatically makes a serious disease-treatment claim permissible.

Claims concerning serious diseases such as **cancer, diabetes, hypertension, or other serious conditions** can create substantial consumer-risk concerns.

Compliance Trigger:

Cancer claim / serious disease / traditional medicine / disclaimer / self-treatment.

Example 15 Customer Testimonials Cannot Replace Scientific Evidence

FTC Source: Health Products Compliance Guidance Example 39

Scenario:

A website contains customer testimonials saying that a sleep-related app eliminated their insomnia and allowed them to sleep soundly within less than a week.

FTC principle:

The testimonials themselves do not constitute substantiation. The advertiser needs competent and reliable scientific evidence for the underlying efficacy claim.

Ayurvedic Application:

If customers say:

This Ayurvedic capsule cured my insomnia

the company cannot treat the testimonial as the scientific evidence supporting that claim.

Compliance Trigger:

Customer testimonial / insomnia claim / efficacy evidence / FTC endorsement.